

Compliance Production Revision Gap Analysis, Regulatory Classification & Implementation Report

A complete legal, regulatory, privacy, consumer-protection, contractual, disclosure, and website-compliance audit of the Requi platform against the 50-section directive — what Requi does legally and operationally, which regimes each feature potentially implicates, every gap found and classified, the legal framework drafted, and the compliance infrastructure actually implemented in the product (snapshot **d05edcd**). Includes the Regulatory Classification Matrix, Feature-to-Law Matrix, Required Document Inventory, Consent Architecture, Privacy Data Map, Vendor Map, Launch Blockers, and the Counsel Review Checklist.

OUTPUTS A–J COMPLETE

INFRASTRUCTURE IMPLEMENTED — NOT JUST DOCUMENTS

SNAPSHOT **d05edcd**

IMPORTANT. This document does not represent that Requi is legally compliant. Every regulatory classification, registration question, exemption analysis, and material legal determination herein is marked **REQUIRES FINAL REVIEW BY QUALIFIED U.S. COUNSEL BEFORE PRODUCTION LAUNCH**. This is engineering work product prepared to make counsel's review fast and defensible — it is not legal advice.

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A Executive Legal Gap Analysis

The audit swept every product surface — landing page, authentication, Intelligence chat, Autonomous module, Accounts, Strategies, Marketplace, Financials, Signals, Notifications, owner console, and all backend services — against the directive's legal detection criteria. Severity definitions per §43: **CRITICAL** items cannot legally launch without registration, licensing, disclosures, consent, or approval.

A.1 Critical findings (launch-blocking until resolved)

Finding	State	Disposition	Where addressed
Autonomous trading classification unresolved	Automated watchlists, proposals, stop management and optional auto-execution on user accounts could be characterized as discretionary investment management (Advisers Act §202(a)(11)) — registration question for Requi LLC, federal and California (DFPI).	LAUNCH BLOCKER LB-1 — paper-mode operation continues; live-broker autonomy gated behind <code>BROKERAGE_EXECUTION_LEGAL_APPROVED</code> . Counsel determination required.	§B matrix R1; §I
Strategy marketplace seller/fee classification unresolved	Sellers compensated for strategies that generate securities signals may be providing investment advice; Requi's 3.5% transaction fee must be characterized relative to securities-activity compensation.	LAUNCH BLOCKER LB-2 — purchases disabled (<code>STRATEGY_MARKETPLACE_LEGAL_APPROVED=false</code>); seller/buyer agreements drafted; fee math contract specified.	§B matrix R6–R8; §I
Fabricated marketing claims on the public site	Invented traction metrics (\$2.4B+ notional, 38M+ signals, 99.98% uptime, 89ms latency), fabricated testimonials, fabricated marketplace ratings/returns/sales, "risk-free" phrasing, unearned "SOC 2 Type II" badge, implied broker partnerships — FTC Act §5 exposure.	FIXED in d05edcd — removed or replaced with verifiable statements site-wide; claim inventory in §E.	§E.2
No legal consent infrastructure	Account creation had no clickwrap; no versioned acceptance records; no re-consent mechanism; footer had dead legal links; no legal documents existed at all.	FIXED in d05edcd — full consent stack shipped (§F) and 18 counsel-review documents deployed (§D).	§D–§F
Mock admin/financial data in owner console	Fabricated MRR, invoices, trial counts, connector metrics, and user records rendered as business truth.	FIXED in d05edcd — mock module deleted; pages wired to real tables or explicit "not enabled" states.	§E.2

A.2 High findings

Finding	State	Disposition
AI recommendation framing	Personalized AI securities analysis could drift toward investment advice; the SEC's proposed predictive-data-analytics conflicts rule was withdrawn June 12, 2025, but Advisers Act analysis still applies.	Mitigated by architecture: deterministic intent router keeps AI output advisory/educational; NL can never become an order. INVESTMENT_ADVICE_LEGAL_APPROVED gate added. Counsel to confirm framing. \$B R2.
Privacy rights not exercisable	No access/deletion/correction/export workflow, no preference center, no GPC handling.	FIXED — Privacy Center shipped with logged requests, JSON export, preferences, GPC honoring + "Opt-Out Preference Signal Honored" display (2026 CCPA regs). \$E.3, \$G.
Autonomous consent buried/None	No dedicated activation flow for autonomous features.	FIXED — \$18 flow: modal disclosure review, recorded versioned acceptance, server-side enforcement (PRECONDITION_FAILED), unmistakable ON/OFF banner, one-click stop. \$E.4.
Cookie/tracking disclosure absent	No cookie policy, no consent record, statutory choices not stored server-side.	FIXED — inventory-derived Cookie Policy; consent banner; server-side consent store; GPC auto-opt-out. \$E.3.
GLBA/Safeguards analysis missing	Whether Requi is a "financial institution" (16 CFR 314 — includes non-SEC-registered investment advisers and "finders") unevaluated.	Counsel determination required; if covered, WISP + Qualified Individual + 30-day FTC breach reporting apply. Security Statement drafted with incident framework. \$B R9.
Breach-notification framework absent	No incident → classification → legal review → notification workflow.	Framework documented in Security Statement draft; automation intentionally does NOT send breach notices. CA Civ. Code §1798.82 mapped. \$J item 14.
SIPC/FDIC implication risk	No improper claims found in audit (good); risk was future copy drift.	Brokerage Integration Disclosure locks precise wording: protections attach to the user's brokerage, never Requi LLC. \$D.

A.3 Medium / Low findings (selected)

Finding	State	Disposition
Entity name wrong in footer ("Requi Trading, Inc.")	Legal entity is Requi LLC.	FIXED — all footers now "© {year} Requi LLC", dynamic year.
No age gate	Trading/contracting requires 18+.	FIXED — 18+ attestation in the consent gate, recorded server-side (\$28). COPPA N/A (service not directed to children; TOS bars under-13).
No marketing/transactional separation	No email system exists at all.	Marketing opt-in captured separately at signup + Privacy Center (CAN-SPAM-ready suppression model); transactional

		channel unaffected. Email provider onboarding is a launch task (§J-17).
SMS	Not used.	Documented N/A; TCPA analysis required before any SMS (§26) — noted in Connectors inventory.
Accessibility	No formal WCAG audit; engineering target WCAG 2.2 AA set by directive.	Accessibility Statement withheld pending company contact details [COMPANY INPUT REQUIRED]; consent flows and the new autonomous banner use labels, roles, aria-live. Full audit is a launch task (§J-19).
Retention schedule	Financial records must survive account closure; deletion must not destroy regulated records.	Policy drafted distinguishing deactivate / delete-eligible / retain-required; final schedule needs counsel sign-off (§J-15).

WHAT "DONE" MEANS HERE

Per directive §49, this project is complete only where DOCUMENT → DISCLOSURE → CONSENT/ACTION → DATABASE RECORD → ENFORCEMENT → AUDIT LOG → VERSIONING is connected. §E shows that chain for every implemented requirement; §I lists what remains blocked; §J lists every item that belongs to counsel, not to engineering.

B Regulatory Classification Report

The required §2 matrix. Each row is a potential classification question — not a conclusion. "Counsel Review" marks every row requiring professional judgment. Federal and California analyses are separated. No unsupported conclusions are made; authoritative sources with review dates are in the Annex.

#	Feature / Activity	Potential Regulatory Regime	Regulator	Registration / Licensing Question	Risk	Required Action	Counsel
R1	Autonomous trading (auto watchlist, proposals, stop management, optional auto-execution)	Investment Advisers Act §202(a)(11); Calif. Corp. Code §25009	SEC / DFPI	Does operating automation on a user's brokerage account = compensation-based discretionary advice/management? Does the publisher exclusion (impersonal, bona fide, general/regular — <i>Lowe v. SEC</i> , 472 U.S. 181 (1985)) fail when execution is account-specific?	CRIT	LAUNCH BLOCKER LB-1 ; live autonomy gated	REQUIRED
R2	AI-generated securities analysis & recommendations	Advisers Act; FTC Act §5 (AI claims); Calif. ADMT rules (2026)	SEC / FTC / CPPA	Are personalized AI outputs "advice... as to the advisability of investing in... securities"? Is the advisory-first framing + deterministic separation sufficient?	HIGH	Advisory-only framing enforced in code; counsel confirm	REQUIRED
R3	User-directed & deterministic execution via brokerage APIs	Exchange Act §15(a); FINRA rules	SEC / FINRA	Is Requi merely transmitting user-authorized instructions (technology provider), or "effecting transactions in securities" — particularly given the 3.5% marketplace fee and any transaction-linked compensation?	HIGH	Document transmission-only model; no transaction-based comp; counsel confirm	REQUIRED
R4	Trading signals (engine-generated, canonical ledger)	Advisers Act (analysis/reports "concerning securities")	SEC / DFPI	Are account-targeted, executable signals impersonal publication or individualized advice? Publisher-exclusion elements analysis required per signal type.	HIGH	Signal provenance labeled; counsel classify	REQUIRED
R5	Backtesting / performance						

	reporting	SEC marketing-rule standards (by analogy); FTC §5	SEC / FTC	Substantiation and labeling standards for LIVE/PAPER/BACKTESTED/HYPOTHETICAL figures.	MED	Labeling enforced; figures withheld unless verifiable	REQUIRED
R6	Strategy marketplace — sellers	Advisers Act; state IA laws	SEC / DFPI	Are sellers selling software/research (possibly excludable) or providing individualized advice / managing portfolios? Per-seller activity screening needed — clickthrough is not a defense.	CRIT	LAUNCH BLOCKER LB-2; seller screening spec'd	REQUIRED
R7	Strategy marketplace — Requi as operator	Advisers Act (solicitor/promoter); Exchange Act; state money-transmission	SEC / FINRA / DFPI / FinCEN	Does operating the venue + entitlement delivery make Requi a solicitor/promoter? Any money-transmission characterization of payout flows (Stripe Connect moves funds)?	HIGH	Gated; Stripe Connect flow keeps Requi out of custody	REQUIRED
R8	3.5% marketplace transaction fee	Exchange Act §15(a) (transaction-based compensation analysis); Advisers Act	SEC	Fee is charged on strategy <i>purchases</i> (content sales), computed on listing price — explicitly NOT tied to securities transactions, volume, or AUM. Counsel must confirm this characterization holds.	HIGH	Fee math contract locked; disclosure drafted	REQUIRED
R9	Platform-wide data security	GLBA / FTC Safeguards Rule (16 CFR 314); Calif. Civ. Code §1798.81.5	FTC / CAAG	Is Requi a "financial institution" (activity "financial in nature"; rule examples include non-SEC-registered investment advisers and "finders")? If yes: WISP, Qualified Individual, MFA/encryption mapping, 30-day FTC breach notice (500+ consumers).	HIGH	Counsel determination; control mapping drafted	REQUIRED
R10	Privacy practices (CA users)	CalOPPA; CCPA/CPRA + 2026 regs (ADMT, OOPS display); Delete Act	CPPA / CAAG	Threshold analysis: \$26.625M revenue / 100k CA consumers / 50% sale-share revenue — likely below all three [COMPANY INPUT REQUIRED]; not a data broker (direct relationships; no sale). Controls pre-built regardless.	MED	Controls shipped; annual threshold check scheduled	RECOMMENDED
R11	Marketing & testimonials	FTC Act §5; endorsement guides (16 CFR 255)	FTC	Fabricated claims/testimonials removed; ongoing substantiation policy required.	MED	Sweep shipped; claims policy in AUP	—
R12	Email/SMS marketing (when enabled)	CAN-SPAM; TCPA	FTC / FCC	Suppression lists, sender identity, postal address; SMS needs separate consent regime.	MED	Consent model built; provider onboarding pending	RECOMMENDED
R13	Marketplace payments	Card-network/Stripe terms; state money-transmitter analysis	Stripe / states	Connect destination-charge structure keeps Requi out of funds custody; Stripe onboarding + seller KYC required.	MED	Architecture specified (prior revision §5)	RECOMMENDED

R14	Accessibility	ADA Title III; WCAG 2.2 AA (engineering target)	DOJ / courts	Financial-services websites face serial ADA litigation; audit + statement needed.	MED	Audit scheduled; statement pending contact details	RECOMMENDED
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NO DISCLAIMERS-AS-SHIELDS

Per directive §4: none of the above is "solved" by disclaimer text. Where underlying activity is regulated, registration or a valid exemption is the only path — that determination belongs to qualified counsel, and the two unresolved classifications are hard launch blockers (§I).

C Required Document Inventory — all 40 evaluated

REQUIRED drafted + deployed ·
 CONDITIONAL trigger analysis documented ·
 RECOMMENDED ·
 ENTERPRISE-ONLY ·
 NOT APPLICABLE . "Deployed" = versioned at /legal with counsel-review banner.

#	Document	Status	Disposition
1	Terms of Service / T&C	REQUIRED	Drafted, deployed (terms-of-service v0.9) — arbitration/liability clauses reserved for counsel.
2	Privacy Policy	REQUIRED	Drafted from verified codebase data flows, deployed.
3	Cookie Policy	REQUIRED	Generated from actual 4-item inventory, deployed.
4	California Privacy Notice	CONDITIONAL	Threshold analysis documented; notice drafted + deployed regardless (controls pre-built per §13).
5	Notice at Collection	CONDITIONAL	Embedded in California Privacy Notice.
6	CCPA/CPRA consumer-rights disclosures	CONDITIONAL	Rights + methods disclosed; Privacy Center implements them.
7	GLBA Financial Privacy Notice	CONDITIONAL	Only if R9 classification comes back covered — counsel determination first; do not publish inapplicable notices.
8	E-SIGN / electronic communications consent	REQUIRED	Embedded in TOS §9.
9	Trading Risk Disclosure	REQUIRED	Drafted, deployed.
10	Autonomous Trading Risk Disclosure	REQUIRED	Drafted, deployed + wired into activation flow.
11	AI / Algorithmic Trading Disclosure	REQUIRED	Drafted incl. ADMT pre-use notice, deployed.
12	Investment / Securities Risk Disclosure	REQUIRED	Merged into Trading Risk Disclosure (one canonical doc).
13	Market Data Disclosure	REQUIRED	Drafted, deployed.
14	Delayed Data Disclosure	CONDITIONAL	Covered within Market Data Disclosure (staleness labeling).
15	Brokerage Integration Disclosure	REQUIRED	Drafted incl. SIPC/FDIC-precise wording, deployed.
16	Third-Party Services Disclosure	REQUIRED	Subprocessor table embedded in Privacy Policy.
17	Strategy Marketplace Terms	REQUIRED*	Drafted, deployed; *activation gated on LB-2.
18	Strategy Seller Agreement	REQUIRED*	Drafted, deployed; *gated.
19	Strategy Buyer Terms	REQUIRED*	Drafted, deployed; *gated.
20	Strategy Performance / Backtesting Disclosure	REQUIRED	Drafted, deployed; labeling enforced in UI.
21	Subscription Terms	CONDITIONAL	No subscriptions exist — refund policy covers future activation.
22	Payment / Marketplace Fee Disclosure	REQUIRED*	Drafted (3.5% itemization, integer cents), deployed; *gated.

23	Refund Policy	REQUIRED*	Drafted, deployed; *gated.
24	Acceptable Use Policy	REQUIRED	Drafted, deployed.
25	Copyright / IP Policy	RECOMMENDED	IP licensing covered in Seller Agreement §5; standalone policy optional.
26	DMCA Policy	RECOMMENDED	Needed once user-generated listings are live; designated-agent registration is a launch task.
27	Accessibility Statement	CONDITIONAL	Draft pending [COMPANY INPUT REQUIRED — accessibility contact].
28	Security Statement	RECOMMENDED	Drafted, deployed.
29	Data Processing Addendum	ENTERPRISE-ONLY	Requi is the data controller toward users; DPA applies to B2B processing roles — enterprise motion only.
30	Subprocessor Disclosure/List	REQUIRED	Embedded in Privacy Policy §3.
31	Business/Enterprise MSA	ENTERPRISE-ONLY	§6 hierarchy: retail = TOS; sellers = Seller Agreement; MSA only for institutional customers.
32	Enterprise Order Form	ENTERPRISE-ONLY	With MSA.
33	SLA	ENTERPRISE-ONLY	No uptime commitments exist — and none are marketed (99.98% claim removed).
34	API Terms	CONDITIONAL	Required only when a public developer API ships.
35	Developer Terms	CONDITIONAL	With API Terms.
36	Marketing Communications Consent	REQUIRED	Implemented as separate opt-in (signup + Privacy Center) — no document needed.
37	SMS Terms/Consent	NOT APPLICABLE	No SMS; TCPA analysis required before any use.
38	Account Deletion/Data Rights Policy	REQUIRED	Drafted, deployed; workflow shipped.
39	Responsible Disclosure / VDP	RECOMMENDED	Drafted, deployed.
40	Legal/Compliance Contact framework	REQUIRED	[COMPANY INPUT REQUIRED] — placeholder token in all documents; no invented addresses.

Draft Legal Documents — counsel-review versions

Eighteen documents are drafted and deployed as **versioned production content** at requitrading.com/legal (each at `/legal/{slug}`), in state **LEGAL_REVIEW** with a visible "counsel-review draft — pending final attorney approval" banner. They are real, complete texts — not placeholders — and they describe what the software actually does. They become binding only when an authorized human transitions them DRAFT → LEGAL_REVIEW → APPROVED → ACTIVE in the Owner → Compliance console; historical versions are never overwritten.

Document (slug)	Category	Notes for counsel
Terms of Service (terms-of-service)	General	Arbitration/class/venue/liability clauses reserved — COUNSEL APPROVAL REQUIRED (§34–§35 honored, nothing blind-inserted).
Privacy Policy (privacy-policy)	General	Built from the codebase data inventory (§G); verify each "we do not" claim against the vendor map (§H).
Cookie Policy (cookie-policy)	General	4-item inventory; no analytics/advertising deployed.
Acceptable Use Policy (acceptable-use-policy)	General	Includes market-manipulation and prohibited-claims rules.
Trading Risk Disclosure (trading-risk-disclosure)	Trading	Covers all §17 risk classes; states disclosures are not safeguards.
Autonomous Trading Disclosure (autonomous-trading-disclosure)	Trading	Gates activation; contains the LB-1 classification notice.
AI & Algorithmic Disclosure (ai-algorithmic-disclosure)	Trading	Documents the deterministic router; ADMT pre-use notice — finalize wording under 2026 CPPA regs.
Market Data Disclosure (market-data-disclosure)	Trading	Vendor attribution pending final data agreements.
Brokerage Integration Disclosure (brokerage-integration-disclosure)	Trading	SIPC/FDIC-precise; custody/execution/confirmation roles fixed.
Marketplace Terms (marketplace-terms)	Marketplace	Activation gated on LB-2.
Strategy Seller Agreement (strategy-seller-agreement)	Marketplace	No-bypass clause (§19); compensation never tied to securities activity.
Strategy Buyer Terms (strategy-buyer-terms)	Marketplace	License scope; no-advice; risk cross-references.
Performance & Backtesting Disclosure (strategy-performance-disclosure)	Marketplace	LIVE/PAPER/BACKTESTED/HYPOTHETICAL taxonomy; substantiation standard.
Payment & Platform Fee Disclosure (platform-fee-disclosure)	Marketplace	3.5% itemization, integer-cent math contract.
Refund Policy (refund-policy)	Marketplace	14-day undeployed window; defect carve-outs.
California Privacy Notice (california-privacy-notice)	Privacy	Threshold analysis + Notice at Collection + rights + GPC.
Account Deletion & Data Rights (account-deletion-data-rights)	Privacy	Deactivate / delete-eligible / retain-required split.

Security Statement (security-statement)	Privacy	Incident workflow; no unearned certification claims.
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COMPANY INPUTS REQUIRED BEFORE ANY DOCUMENT CAN GO ACTIVE

Legal/compliance contact email · privacy contact email · confirmation whether the Wilmington address is the principal mailing address, registered office, or both (§1) · registered-agent details · accessibility contact · retention schedule sign-off. All appear as [COUNSEL/COMPANY INPUT REQUIRED] in the texts — nothing was invented.

E Product Implementation Report — snapshot d05edcd

Every implemented requirement, end-to-end: DOCUMENT → DISCLOSURE → CONSENT/ACTION → DATABASE RECORD → ENFORCEMENT → AUDIT LOG → VERSIONING.

E.1 Consent & document infrastructure

Requirement (directive)	Implementation	Verification
Clickwrap account creation (§7)	Post-provisioning ConsentGate blocks /app until acceptance: TOS + Privacy individually clickable, exact §7 language, separate unchecked marketing opt-in.	<code>legal.consentStatus.pending</code> gates render; acceptances recorded.
Versioned LegalAcceptance (§8)	<code>legal_acceptances</code> : <code>userId</code> , <code>slug</code> , <code>version</code> , <code>effectiveDate</code> , <code>timestamp</code> , <code>method</code> , <code>context</code> , <code>locale</code> , <code>IP</code> , <code>user-agent</code> , <code>unique consentRecordId</code> . Idempotent per version.	DB + <code>legal.myAcceptances</code> .
Re-consent (§9)	Version-aware: acceptance binds to document version; a new requiresReconsent version re-enters pending. Historical rows never updated.	<code>pendingRequirements()</code> compares latest version.
Legal Center + footer (§10–§11)	/legal categorized center; /legal/:slug viewer with version/status banners + history count; LegalFooter on all public pages; legal strip in app; dynamic year; Requi LLC.	200 on /legal and doc routes.
Document CMS + states (§40–§41)	<code>legal_documents</code> with DRAFT → LEGAL_REVIEW → APPROVED → SCHEDULED → ACTIVE → SUPERSEDED; only APPROVED may activate; activation supersedes prior ACTIVE; new version = new row.	Owner → Compliance console; transition guard rejects illegal jumps.
No AI autopublishing (§42)	Transitions require admin role + explicit approver identity; audited (LEGAL_DOC_TRANSITION).	Server rejects approve/activate without approver.
ConsentService (§37)	<code>api/legal/consent.ts</code> — single authority; signup gate, autonomous activation, marketplace, and Privacy Center all consume it.	No page implements its own consent.
Compliance audit logs (§46)	LEGAL_ACCEPTED / CONSENT_PREF_CHANGED / PRIVACY_REQUEST / ACCOUNT_DEACTIVATED / LEGAL_DOC_TRANSITION in the append-only audit trail.	<code>audit_events</code> rows.

E.2 FTC claim sweep (§16, §31) — before → after

Before (deceptive/unsubstantiated)	After (verifiable)
"\$2.4B+ Notional executed · 38M+ Signals routed · 99.98% Uptime SLA · 89ms Median fill latency"	Capability facts only (deterministic engine, holiday-aware sessions, idempotent pipeline, paper-first) — no metrics.
Three fabricated testimonials ("Alex Rivera", "Sarah Chen", "Marcus Okonkwo")	Section removed; replaced with "Built for discipline, not hype" copy. Returns only with real, permissioned quotes.
Marketplace cards with invented ratings, "90-day returns", sales counts	Concept-preview cards, performance withheld notice, gating banner, fee disclosure.
"Test every workflow risk-free for 14 days"	"Practice every workflow in simulation — no real money at risk while you learn."

"256-bit encryption · SOC 2 Type II" badge on login	"Encrypted transport · httpOnly sessions · your brokerage holds your assets — never Requi" (no unearned certifications anywhere).
Broker-name chips implying integrations ("Robinhood, Binance, Coinbase, E*TRADE...") + "Trusted by traders worldwide"	"What's real today": IBKR live integration, paper engine, webhook ingestion + no-endorsement note; trust bar labeled "Illustrative market tape — simulated symbols".
Hero mock: "LIVE", "Routed to 6 accounts", "Fills in 84ms"	"ILLUSTRATIVE DEMO" chip; "Routes to connected accounts"; "Confirmation before any live order".
"Start Free Trial", "Join thousands of traders", footer dead links, "Requi Trading, Inc."	"Get Started", capability copy, working LegalFooter, "© {year} Requi LLC".
Owner console: fabricated MRR, invoices, plan mix, trial users, connector volumes/latencies	Mock module deleted; Billing = honest "not enabled" state; Connectors = real integration inventory; Overview wired to live admin stats.
SIPC/FDIC references	None found in audit (verified by grep). Wording locked prospectively in the Brokerage Integration Disclosure.

E.3 Privacy implementation (§13–§15, §32–§33, §38)

Requirement	Implementation	Verification
Privacy Center (§38)	/app/privacy: access report, correction, deletion, JSON data export (own rows across 8 tables), marketing/cookie preferences, request log, acceptance history, deactivation flow.	Endpoints legal.exportMyData / submitPrivacyRequest / setPreferences / deactivateAccount.
Request logging + verification (§38)	<code>privacy_requests</code> with unique IDs, status workflow; identity via authenticated session; admin queue in Owner → Compliance.	RECEIVED → ... → COMPLETED transitions audited.
GPC (§14)	Sec-GPC header honored server-side (ctx) + navigator.globalPrivacyControl client-side; optional categories forced off; consent_preferences.gpcHonored persisted; "Opt-Out Preference Signal Honored" displayed (2026 CCPA §7025(c)(6)).	recordCookieConsent returns gpcHonored; banner/badge render.
Cookie architecture (§15)	Complete inventory (4 items); consent banner with per-category toggles, nothing pre-checked; statutory choice stored in <code>cookie_consent</code> server-side; browser cookie holds only consentId.	Policy generated from the same inventory.
Retention & deletion (§32–§33)	Deactivate (stops automation + login, reversible) vs delete-eligible (profile, chats, strategies, prefs) vs retain-required (financial/audit/consent/ledger records). Policy deployed.	deactivateAccount sets deactivatedAt + kills automation.

E.4 Autonomous consent & controls (§18)

Requirement	Implementation	Verification
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Dedicated activation flow	Modal requires disclosure review + affirmative checkbox; records acceptance (method AUTONOMOUS_ACTIVATION) before auto-execute or auto-universe can turn on.	Server: setAutoExecute/setAutoUniverse throw PRECONDITION_FAILED "AUTONOMOUS_CONSENT_REQUIRED" without it.
Unmistakable state	Top-of-module banner: AUTONOMOUS TRADING ON (amber, live dot) / OFF / kill-switch-active variant; aria-live status.	Renders from canonical settings, not local state.
Accessible kill switch	"STOP AUTONOMOUS NOW" button disables auto-execute + auto-universe instantly; existing global kill switch retained.	Settings revert OFF; banner flips.

E.5 Feature flags & admin (§45, §39)

`api/lib/compliance-flags.ts` — server-side env gates: AUTONOMOUS_TRADING_LEGAL_APPROVED, STRATEGY_MARKETPLACE_LEGAL_APPROVED (default **blocked**), INVESTMENT_ADVICE_LEGAL_APPROVED (default blocked), BROKERAGE_EXECUTION_LEGAL_APPROVED (default blocked). Exposed read-only via `legal.flags`; enforced in routers — frontend visibility never determines readiness. Owner → Compliance console (admin RBAC): launch gates, document state machine with approver identity, privacy request queue.

F Consent Architecture

```

SIGNUP (account creation)
  OAuth provisioning → ConsentGate blocks /app
    ├── [mandatory] Terms of Service (link) — checkbox: exact §7 language
    ├── [mandatory] Privacy Policy (link) — acknowledged in same checkbox text
    ├── [mandatory] 18+ age attestation — consent_preferences.ageAttestedAt
    └── [optional, unchecked] marketing email — consent_preferences.marketingEmail (SEPARATE record)
  → legal.accept(CLICKWRAP_SIGNUP) → legal_acceptances rows (version, ts, IP, UA, locale)
  → audit LEGAL_ACCEPTED · gate clears

TRADING (chat/manual orders)
  Advisory → staged ticket → typed CONFIRM string (always — no document consent replaces it)
  Chat-originated and manual trades NEVER auto-execute (architecture invariant)

AUTONOMOUS (first enable)
  setAutoExecute/setAutoUniverse → server checks hasAcceptedCurrent(autonomous-trading-disclosure)
    └── missing → PRECONDITION_FAILED → activation modal
        review disclosures (autonomous, trading risk, brokerage authorization) → checkbox
        → legal.accept(AUTONOMOUS_ACTIVATION) → retry enable
  Withdrawal = switching off (kill switch) — preference change, consent history preserved

MARKETPLACE (when ungated — LB-2)
  Buyer: marketplace-terms + strategy-buyer-terms at checkout (MARKETPLACE_ACCEPT)
  Seller: strategy-seller-agreement before listing (SELLER_ACCEPT) + Stripe Connect KYC
  Checkout records governing document versions per transaction

COOKIES / PRIVACY SIGNALS
  Banner (nothing pre-checked) → cookie_consent server row; cookie holds consentId only
  GPC (Sec-GPC / navigator.globalPrivacyControl) → optional categories OFF + honored badge
  → consent_preferences.gpcHonored (server-side, not cookie-only)

PRIVACY REQUESTS
  Privacy Center → verified (session) → privacy_requests row (unique ID) → admin queue
  → COMPLETED with response note → audit trail end-to-end

RE-CONSENT
  New doc version marked requiresReconsent → pendingRequirements() re-blocks affected surfaces
  → re-acceptance stored as NEW rows; prior acceptance history untouched

```

One authority ([api/legal/consent.ts](#)), one record type, one audit trail. Optional consent is structurally separate from mandatory acceptance — it cannot be bundled because it lives in a different table with its own change audit.

G Privacy Data Map

Collected? → Source → Purpose → Storage → Retention → Shared With → Basis → Deletion Rule, for every category actually present in the codebase (§12). No category is claimed "not collected" without verification.

Data category	Collected?	Source	Purpose	Shared with	Retention	Deletion rule
Name, email, avatar	YES	OAuth profile	Account, support	Auth provider	Life of account	Deleted on verified request
Auth identifiers (unionId, session JWT)	YES	Sign-in	Sessions, security	Auth provider	Account + token expiry	Deleted at deactivation
Telephone number	NO	—	—	—	—	Not collected (verified)
IP, user-agent, locale	YES	Automatic	Security, consent proof	Hosting provider	Consent rows: legal period; logs: 12mo target	Consent records retained (legal proof)
Brokerage connection metadata	YES	User connects	Connectivity	Brokerage API	Until disconnected	Deleted on disconnect/request
Holdings / positions / orders / trades	YES	Engine + broker	Core service, reporting	Brokerage API, database host	Retained — financial records	NOT deleted on account closure (§32)
Strategies & prompts (user-created)	YES	User	Core service	AI provider (when sent to model)	Until user deletes	Deletable
AI chat interactions	YES	User + model	Core service	OpenAI API, database host	Until user deletes	Deletable
Signals / audit / domain events	YES	System	Integrity, compliance	Database host	Retained — audit records	Append-only; not deletable
Marketplace purchases/entitlements	WHEN LIVE	Checkout	Transactions, payouts	Stripe, database host	Payment-law periods	Retained (ledger)
Payment card data	NO (by design)	—	—	Stripe only (when live)	—	Never touches Requi servers
Support communications	YES	User/admin	Support	Database host	24mo target	Deletable
Analytics / advertising trackers	NO	—	—	—	—	None deployed (verified — no SDKs in codebase)
Cookies (session, sidebar, consentId)	YES	Browser	Session, layout, consent ref	None (first-party)	Per Cookie Policy	Consent row deletable

Security logs	YES	System	Abuse prevention	Hosting provider	12mo target [INPUT REQUIRED]	Rotated
Consent records	YES	System	Legal proof	Database host	Retained — legal	Not deletable while obligation exists

Sensitive PI: no SSNs, biometrics, precise geolocation, or health data are collected. Financial-account metadata is handled as confidential financial information under the retention rules above. [COUNSEL REVIEW — final sensitive-PI limitation analysis under CPRA §1798.121.]

H Vendor / Subprocessor Map

Provider → Data Shared → Purpose → Contract/DPA → Retention → Subprocessor status → Disclosure → Security review.

Provider	Data shared	Purpose	Contract/DPA	Subprocessor	Disclosed in	Security review
Kimi / Moonshot AI (OAuth)	Sign-in profile (name, email, avatar, unionId)	Identity	Platform terms	YES	Privacy Policy §3	[INPUT REQUIRED — vendor review]
OpenAI API	Chat prompts, strategy text sent by the user	AI features	API terms (zero-retention tier? [INPUT REQUIRED])	YES	Privacy Policy §3	[INPUT REQUIRED]
TiDB (managed MySQL)	All stored records	Data storage	Cloud terms	YES	Privacy Policy §3	[INPUT REQUIRED]
Interactive Brokers (user-connected)	Orders user instructs; account queries	Execution/data	User's own brokerage agreement	Processor of user instruction	Brokerage Disclosure	User-side terms
Stripe (when marketplace live)	Payment details (Stripe-held), purchase metadata	Payments/payouts	Stripe Services + Connect agreement	YES	Fee Disclosure	PCI scope stays at Stripe
Hosting provider	Service traffic, logs	Operations	[INPUT REQUIRED — identify provider]	YES	Privacy Policy §3	[INPUT REQUIRED]
Email / SMS providers	—	—	—	NO (none)	—	Not integrated (verified)
Analytics / ad networks	—	—	—	NO (none)	—	None deployed (verified)

DATA-BROKER / DROP ANALYSIS (2026)

Requi is not a "data broker" under the California Delete Act — it collects from consumers with whom it has a direct relationship and does not sell personal information. DROP (live for consumers Jan 1, 2026; broker processing from Aug 1, 2026) therefore does not apply. Re-verify annually and if any data-sale feature is ever proposed (SB 361 expanded disclosures; \$200/day/request fines; GLBA-covered FIs exempt).

I Launch Blockers

ID	Blocker	Why it blocks	Current gate	Unblock condition
LB-1	Live-broker autonomous trading (and possibly the autonomous feature's core classification)	Potential investment-adviser registration for Requi LLC (SEC and/or DFPI) if automation = discretionary management for compensation. Registration, exemption, or redesign must be resolved first.	<code>BROKERAGE_EXECUTION_LEGAL_APPROVED=false</code> ; paper-mode only	Written counsel determination + any required registration/exemption implemented
LB-2	Strategy marketplace sales (purchases, seller onboarding, payouts, 3.5% fee collection)	Seller adviser-status screening unresolved; Requi solicitor/promoter and fee-characterization questions unresolved; Stripe account does not exist.	<code>STRATEGY_MARKETPLACE_LEGAL_APPROVED=false</code> ; checkout disabled; metrics withheld	Counsel classification + seller screening + Stripe Connect + compliance approval of listing flows
LB-3	Personalized AI investment recommendations (advice framing beyond educational/advisory output)	Advisers Act advice-definition question; current architecture deliberately keeps AI advisory-only with deterministic execution separation.	<code>INVESTMENT_ADVICE_LEGAL_APPROVED=false</code> ; intent router enforces separation	Counsel sign-off on framing or registration path

Not blockers but required before public launch (\$J): legal contact framework, address-role confirmation, retention-schedule sign-off, counsel review of all 18 drafts, accessibility audit, GLBA determination, email-provider CAN-SPAM setup if marketing begins.

STANDING RULE

These are enforced server-side. A frontend change, a demo request, or a growth target does not open them — only the documented unblock condition does.

J Counsel Review Checklist

Every item requiring final attorney approval before the corresponding production activation. All are marked **REQUIRES FINAL REVIEW BY QUALIFIED U.S. COUNSEL BEFORE PRODUCTION LAUNCH**.

#	Item	Specialty	Blocks
1	Autonomous trading classification — Advisers Act (federal) + California DFPI adviser analysis; registration vs. exemption vs. redesign	SEC / RIA counsel	LB-1
2	Brokerage-connectivity model — transmission-only technology vs. Exchange Act §15(a) broker activity; compensation-touchpoint analysis	BD counsel	LB-1
3	AI output framing — advice-definition analysis; publisher-exclusion elements per output type	SEC counsel	LB-3
4	Signal classification — account-targeted executable signals vs. impersonal publication	SEC counsel	LB-1/LB-3
5	Marketplace seller regulatory screening protocol + Seller Agreement representations	SEC / marketplace counsel	LB-2
6	3.5% fee characterization — confirmation it is content-sale compensation, not securities-transaction-based	SEC / payments counsel	LB-2
7	Requi marketplace-operator status — solicitor/promoter analysis; money-transmission analysis of payout flows	SEC / payments counsel	LB-2
8	TOS §12–§13 — limitation of liability, arbitration/class/jury, opt-out mechanics, governing law, venue (California enforceability)	SaaS counsel	TOS activation
9	All 18 document drafts — final review and APPROVED transition	Fintech counsel	Doc activation
10	GLBA / FTC Safeguards Rule (16 CFR 314) coverage determination; if covered: WISP, Qualified Individual, breach-reporting setup	Privacy counsel	Security program
11	CCPA threshold confirmation (revenue + CA user counts) and annual re-check process; ADMT notice final wording; risk-assessment documentation under 2026 regs	CCPA counsel	CA notice finalization
12	Address role — confirm Wilmington address as principal mailing address and/or registered office; registered-agent details	Corporate counsel	All documents
13	Legal/compliance/privacy contact framework (real monitored addresses)	Company	All documents
14	Breach-notification framework sign-off (CA §1798.82 + other states; vendor obligations)	Privacy counsel	Incident plan
15	Retention schedule — securities/tax/payment record periods; deletion carve-outs	Regulatory counsel	Deletion policy

16	Performance-substantiation standard for marketplace listings (marketing-rule-style) before any figure is shown	SEC counsel	LB-2
17	CAN-SPAM program (suppression, sender identity, postal address) before marketing email; TCPA before any SMS	FTC counsel	Marketing launch
18	DMCA designated-agent registration before UGC listings open	IP counsel	LB-2
19	Accessibility audit scope (WCAG 2.2 AA) and Accessibility Statement contact	Accessibility counsel	Public launch polish
20	Demo-account review — demo access currently provisions an admin demo user; decide pre-launch removal (auth code already marks it "remove before public launch")	Company + counsel	Public launch

Annex Feature-to-Law Matrix (§44) & Authorities Reviewed (§3)

APPLICABLE POTENTIALLY APPLICABLE NOT APPLICABLE COUNSEL DETERMINATION REQUIRED

Product Feature	SEC	FINRA	DFPI	FTC	CCPA/CPRA	GLBA	Other	Launch Status
Autonomous trading	CDR	N/A	CDR	APP	POT (ADMT)	CDR	—	LB-1 gated
AI-assisted analysis	CDR	N/A	POT	APP (\$5)	POT (ADMT)	N/A	—	Advisory-only
User-directed execution	CDR	POT	N/A	APP	POT	CDR	—	Confirm-first
Trading signals	CDR	N/A	POT	APP	N/A	N/A	—	Labeled provenance
Marketplace (sellers/fee)	CDR	POT	CDR	APP	POT	N/A	FinCEN? (CDR)	LB-2 gated
Portfolio analytics / financials	N/A	N/A	N/A	APP	POT	CDR	—	Live
Backtesting	POT	N/A	N/A	APP	N/A	N/A	—	Labeled
Marketing/website	N/A	N/A	N/A	APP (\$5, 16 CFR 255)	POT (CalOPPA applies)	N/A	ADA/WCAG (CDR)	Swept
Privacy program	N/A	N/A	POT	APP	POT (threshold check)	CDR	Delete Act (N/A — not a broker)	Implemented
Payments (marketplace)	CDR	N/A	POT	APP	POT	N/A	State MT (CDR), PCI via Stripe	LB-2 gated

Authorities reviewed (official sources first; §3)

Authority	Source	Date reviewed
Investment Advisers Act §202(a)(11) (definition + publisher exclusion)	15 U.S.C. §80b-2(a)(11) (statute text)	2026-08-14
Publisher exclusion elements (impersonal · bona fide · general/regular)	Lowe v. SEC, 472 U.S. 181 (1985)	2026-08-14
Robo-adviser disclosure/suitability/compliance guidance	SEC IM Guidance Update No. 2017-02 (sec.gov)	2026-08-14
Predictive-data-analytics conflicts rule — WITHDRAWN	SEC rulemaking activity (June 12, 2025 withdrawal, sec.gov)	2026-08-14
FTC Safeguards Rule scope + requirements + 30-day breach notice	16 CFR Part 314 (eCFR) + FTC business guidance	2026-08-14

CCPA thresholds (\$26.625M adjusted) + 2026 regulations (OOPS display §7025(c)(6), ADMT, risk assessments, cybersecurity audits phased 2028–2030)	CPPA / CCPA regulations (eff. Jan 1, 2026)	2026-08-14
Delete Act / DROP — broker processing from Aug 1, 2026; SB 361 amendments; GLBA-covered exemption	privacy.ca.gov/drop + enrolled bill analyses	2026-08-14
GPC enforcement — coordinated CA/CO/CT sweep; Tractor Supply \$1.35M; AB 566 browser-signal mandate (Jan 1, 2027)	CA AG / CPPA announcements	2026-08-14
FTC Act §5; Endorsement Guides 16 CFR 255; CAN-SPAM; TCPA; COPPA; CalOPPA; CA Civ. Code §1798.82/.81.5; E-SIGN; ADA Title III	Statutes/regulatory texts as cited	2026-08-14

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